

Bihar Commercial Taxes Department Field Auditors Cadre Rules, 2009

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Bihar Commercial Taxes Department Field Auditors Cadre Rules, 2009

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Rule BIHAR-COMMERCIAL-TAXES-DEPARTMENT-FIELD-AUDITORS-CADRE-RULES-2009 of 2009

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Bihar Commercial Taxes Department Field Auditors Cadre Rules, 2009

Published vide Notification No. 7/ME-301-04/96-2781, dated 17th July 2009, published in Bihar Gazette (Extra-ordinary) No. 584, dated 16.11.2009

No. 7/ME-301-04/96-2781, dated 17th July 2009. - In exercise of the powers conferred by proviso to Article 309 of the Constitution of India, the Governor of Bihar is pleased to make the following Rules to regulate the recruitment, promotion, and other service conditions of the Auditors working in the field establishment of Commercial Taxes :-

Chapter-1

1.

Short title, extent and commencement.

(1)

These 'Rules' may be called Bihar Commercial Taxes Department Field Auditors Cadre Rules, 2009.

(2)

It shall extend to whole of the State of Bihar.

(3)

They shall come into force with immediate effect.

2.

Definitions.

- In these Rules, unless otherwise required in the context -

(a)

'Department' means the Department of Commercial Taxes.

(b)

'Cadre' means the cadre of Auditors working in different offices of Divisions.

(c)

'Appointing Authority' means Commissioner-Cum-Secretary, Department of Commercial Taxes, and

(d)

'Commission' means the Bihar State Staff Selection Commission.

3.

Constitution of the cadre.

(1)

The cadre shall be State level and shall be under the administrative control of the Department of Commercial Taxes.

(2)

Employees appointed and working at present on the post of Auditors in the field offices of the Divisions of the Department shall be deemed to be automatically included in this cadre.

(3)

Appraisalment of number of Auditors of different categories shall be on the basis of their sanctioned strength by the State Government.

(4)

Number of sanctioned strength of Auditors may be increased/decreased from time to time by the State Government.

(5)

The grades of Auditors cadre shall be prescribed in the following manner :-

Sl. No.

Grade Pay

Scale

Level

(i)

Auditor

4500-125-7000

Basic Grade

(ii)

Auditor Grade-II

5500-175-9000

1st Promotion

(iii)

Auditor Grade I

6500-200-10500

2nd Promotion

4.

Procedure of recruitment.

- (i) Direct recruitment shall be made on the post of Auditor Cadre.

(ii)

The minimum educational qualification for appointment to the post of Auditor shall be second class graduate (with Mathematics) or Commerce graduate Passed from any recognized University.

(iii)

The minimum age limit shall be 21 years and the maximum age shall be the age determined by the State Government (Personnel & Administrative Reforms Department) from time to time.

(iv)

The requisition shall be sent by the Appointing Authority to the Commission by 30th April after calculation on the basis of vacancies determined on 1st April of every year.

(v)

The Commission shall invite applications from eligible candidates by advertisement in daily newspapers and prepare a merit list of candidates obtaining minimum qualifying marks on the basis of written competitive examination and send its recommendation to the appointing authority.

(vi)

The syllabus for the conduct of Competitive examination shall be determined by the State Government in consultation with the Commission.

5.

Probation Period.

- The probation period after appointment shall be of two years. The probation period may be extended up to one year if the service and conduct is not found satisfactory during the period. The appointment of such personnel shall be terminated if service and conduct is not found satisfactory during the extended period of probation.

6.

Training.

- (i) The appointing authority shall arrange for conduct of training schedule during the probation period for the members of the cadre

(ii)

A short time Refresher Course shall be arranged for the members of this cadre as per requirement from time to time.

7.

Confirmation.

(1)

The members appointed in this cadre shall be confirmed after satisfactory completion of probation and necessary training.

8.

Promotion.

(1)

The confirmed Auditors in the cadre shall be promoted to Auditors grade II and from Auditors grade II to Auditors grade I on the basis of seniority cum merit recommended by the Departmental Promotion Committee.

(2)

On completion of duration (Kalawadhi) determined by the Department of Personnel and Administrative Reforms, Bihar, Patna, from time to time promotions will be considered from one grade to another.

(3)

Departmental Promotion Committee shall be constituted in the following manner. -

(i)

Commercial Taxes Commissioner - Chairman

(ii)

An officer of Finance Department (Not below the rank of Deputy Secretary - Member.

(iii)

An officer in charge of establishment of Commercial Taxes Department - Member

(iv)

Nominated officer of Scheduled Caste/Scheduled Tribe by Personnel & Administrative Reforms Department - Member.

9.

Reservation.

- The reservation policy and Roster as issued by the State Government from time to time in respect of appointment and promotion shall be strictly followed.

10.

Removal of Difficulty.

- If any difficulty arises in Course of implementation of any provision of this Rule the State Government may issue orders by publishing it in the Gazette for removal of such a difficulty.

11.

The Department shall be competent for defining any provision of this Rule.

12.

Rules/instruction enforced for the time being for the employees of the state shall be applicable regarding such subject and issues which have not been provided in this Rule.

13.

Repeal.

- All previous relevant Resolution/Circulars etc issued in respect of Auditors shall be deemed to be repealed with the commencement of these Rules.

14.

Notwithstanding anything contained in Rule 13 any work done or any order issued or any proceeding passed or any notification published before the commencement of this Rule shall be deemed to have been made or passed or published as if this Rule was valid on the day such work was done or such order passed or such notification published.

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